

26SMCV01898 26SMCV01898

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-30

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

July 30, 2026

CASE NUMBER

26SMCV01898

MOTIONS

Preliminary Injunction

MOVING PARTY

Plaintiffs Pamela Hieronymi and Mark Johnson

OPPOSING PARTY

Defendants Erik China dn Eighteen Cypress, LLC

MOTION

This case arises from a dispute between adjacent neighbors concerning an easement.

On April 7, 2026, Plaintiffs Pamela Hieronymi and Mark Johnson (“Plaintiffs”) brought suit against Defendants Erik Chin (“Chin”) and Eighteen Cypress, LLC (“Eighteen Cypress”) (together, “Defendants”) alleging seven causes of action for (1) breach of contract; (2) breach of contract – specific performance; (3) interference with easement; (4) nuisance; (5) trespass; (6) breach of implied covenant of good faith and fair dealing; and (7) declaratory relief.

On June 1, 2026, Eighteen Cypress cross-complained against Plaintiffs for (1) interference with easement; (2) declaratory relief; (3) trespass; and (4) nuisance.

Plaintiffs now move for a preliminary injunction to enjoin Defendants from (1) using the easement in support of construction activities at 208-210 Bicknell Avenue and (2) further installing or constructing temporary or permanent structures that encroach upon Plaintiffs’ property or the easement boundaries to preserve the status quo pending a trial on the merits.

Defendants oppose the motion and Plaintiffs reply.

LEGAL STANDARD

Pursuant to Code of Civil Procedure section 527, subdivision (a), “[a] preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor.” (Code Civ. Proc., § 527, subd. (a).) “The purpose of a preliminary injunction is to preserve the status quo pending final resolution upon a trial.” (Grothe v. Cortlandt Corp. (1992) 11 Cal.App.4th 1313, 1316.)

The status quo has been defined to mean the last actual peaceable, uncontested status which preceded the pending controversy. (14859 Moorpark Homeowner’s Assn. v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1402.) Preliminary injunctive relief requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. (See, e.g., ReadyLink Healthcare v. Cotton (2005) 126 Cal.App.4th 1006, 1016; Ancora-Citronelle Corp. v. Green (1974) 41 Cal.App.3d 146, 150.)

The trial court considers two factors in determining whether to issue a preliminary injunction: (1) the likelihood the plaintiff will prevail on the merits of its case at trial, and (2) the interim harm the plaintiff is likely to sustain if the injunction is denied as compared to the harm the defendant is likely to suffer if the court grants a preliminary injunction. (Code Civ. Proc., § 526, subd. (a); *Husain v. McDonald's Corp.* (2012) 205 Cal.App.4th 860, 866-867 (hereafter *Husain*).) The balancing of harm between the parties "involves consideration of such things as the inadequacy of other remedies, the degree of irreparable harm, and the necessity of preserving the status quo." (*Husain*, supra, 205 Cal.App.4th at p. 867.)

"The decision to grant a preliminary injunction rests in the sound discretion of the trial court . . . before the trial court can exercise its discretion the applicant must make a prima facie showing of entitlement to injunctive relief. The applicant must demonstrate a real threat of immediate and irreparable injury." (*Triple A Machine Shop, Inc. v. State of Cal.* (1989) 213 Cal.App.3d 131, 138.) "[A]n injunction is an unusual or extraordinary equitable remedy which will not be granted if the remedy at law (usually damages) will adequately compensate the injured plaintiff," and the party seeking injunctive relief bears the burden to prove its absence. (*Department of Fish & Game v. Anderson-Cottonwood Irrigation Dist.* (1992) 8 Cal.App.4th 1554, 1564-1565.)

DISCUSSION

Plaintiffs contend Plaintiffs' property at 212 Bicknell Avenue and Defendants' properties at 208-210 Bicknell are jointly subject to the reciprocal Easement via recorded Grant Deed dated December 29, 1980. (Hieronymi Decl. ¶ 3.) The Easement connects the parking areas of the adjoining properties, with Bicknell Avenue, in Santa Monica. (Hieronymi Decl. ¶ 4.)

On January 10, 2013, Plaintiffs and Defendants' predecessors in interest entered into an Easement Agreement, which amended the terms of the original 1980 Grant Deed. (Hieronymi Decl. ¶ 4.) The Easement is limited to "egress and ingress, driveway and incidental purposes." (Hieronymi Decl. ¶ 4.)

In 2024, Defendants commenced construction of a two-story additional

dwelling unit ("ADU") at the rear of Defendants' property at 208 Bicknell. (Hieronymi Decl. ¶ 5.) The staircase and support wall for the ADU

are within the Easement area. (Hieronymi

Decl. ¶¶ 15-18.) Plaintiffs also contend

Defendants installed permanent steel rebar and support structures for utility

conduits on Plaintiffs' property in support of the construction at 208

Bicknell. (Hieronymi Decl. ¶¶ 21-22.) The construction is ongoing. (Hieronymi Decl. ¶ 6.) Defendants also intend to renovate and expand

the existing one-story structure located at 210 Bicknell. (Hieronymi Decl. ¶¶ 7-8.)

As part of the construction project,

Defendants have used the Easement for parking construction personnel and

staging/parking construction equipment and vehicles, periodically restricting

Plaintiffs' use for ingress and egress to and from Plaintiffs' property. (Hieronymi Decl. ¶¶ 9-10.) Further, Defendants have removed concrete

pavement from the Easement and excavated, destroying the surface, compromising

safe vehicle passage. (Hieronymi Decl.

¶¶ 10, 12.)

Plaintiffs are concerned about liability risks of construction

accidents occurring on the Easement and on their property. Further, Plaintiffs

assert the close proximity of construction traffic and activities have

interfered with their privacy and quiet enjoyment of their property. Further, Plaintiffs contend the permanent ADU

encroachment creates a cloud on title.

(Hieronymi Decl. ¶ 19.)

Defendants explained on June 4, 2025

that the cutting was necessary to install utilities required by the City for

the ADU's sewage and electrical, and the work would take under two weeks,

during which time Plaintiffs would still be able to move their car in and out

of the driveway. (Chin Decl. ¶ 16; Ex. J

to Hieronymi Decl.) Indeed, Defendants

contend that no equipment was staged in the driveway, and if any equipment was

temporarily in the driveway while being actively used by the construction

crews, the crews were directed to, and did, move out of the way to allow

Plaintiffs to pass through whenever Plaintiffs needed. (Chin Decl. ¶¶ 9, 13; Wu Decl. ¶¶ 3, 5.) Further, the exposed trench was covered with

load-rated paneling to allow vehicular traffic to safely pass while the trench

work was ongoing. (Wu Decl. ¶ 5.) Plaintiffs did, in fact, repeatedly drive

over the paneling. (Wu Decl. ¶ 5; Chin

Decl. ¶ 13, Ex. 8.)

Further, the rebar Plaintiffs complain of was (1) temporary and (2) placed outside the Easement area on Defendants' property. (Wu Decl. ¶ 4; Ex. E to Hieronymi Decl.) The purpose of the rebar was to prevent the collapse of soil or trench walls during construction, and it has since been removed. (Chin Decl. ¶ 12; Wu Decl. ¶ 6.)

Notwithstanding, Defendants concede that the ADU as currently built encroaches into a small portion of the easement area, measuring 3.5 feet by 5.5 feet at the terminal end of the easement on Defendants' property. (Chin Decl. ¶ 19.) However, Defendants argue that small encroachment occurred due to Defendants' good faith reliance on their architect and other design professionals who had depicted the ADU as being located outside the easement area. (Chin Decl. ¶ 19 and Ex. 11.) Further, Defendants contend that due to the size and location of the encroachment, Plaintiffs' use of the easement and access to their reserved parking space is not affected. (Chin Decl. ¶ 20.)

With the exception of construction crews using the easement for ingress and egress, construction work affecting the easement area has been completed. The trench has been filled, pavement restored, and no further scaffolding around the ADU. (Chin Decl. ¶ 22, Ex. 12; Wu Decl. ¶ 7.)

With respect to anticipated construction of the 210 Bicknell property, Defendants argue it is premature, as City approval is not anticipated for more than a year. (Chin Decl. ¶ 24.)

Further, Plaintiffs have been named as additional insureds on the general contractor's certificate of insurance, alleviating any concern about potential liability. (Chin Decl. ¶ 5 and Ex. 4.)

Rather than experiencing any irreparable harm, Defendants argue Plaintiffs are continually moving the goal posts of their demands as a means of leveraging interference with Defendants' construction project into expanding the scope of the easement for Plaintiffs' benefit. Specifically, Plaintiffs have

now demanded that they be allowed to drive into Defendants' courtyard to turn their car around; to restrict Defendants' property, which has been zoned for commercial use, to residential use only; for the parties to adopt new communication and maintenance protocols; and that Plaintiff be provided veto power on future construction activities.

(Chin Decl. ¶ 7.)

For example, in January 2025, Plaintiffs complained about the height of the ADU structure, not any encroachment. (Chin Decl. ¶ 10 and Ex. 6 at p. 10.)

In May 2025, Plaintiffs objected to the chalk line on the driveway, indicating Defendants' plan to cut the concrete within the Easement area, and reiterated their earlier demand to expand the easement and restrict property uses. (Chin Decl. ¶ 15 and Ex. 9.)

On June 10, 2025, Plaintiffs alleged for the first time that the ADU wall encroached into the Easement area. (Chin Decl. ¶ 17; Ex. K to Hieronymi Decl.) Plaintiffs then waited over a year before filing the instant Complaint and moving to enjoin the nearly completed construction.

In reply, Plaintiffs reiterate that Defendants have conceded permanent, irreparable harm in the form of the ADU's encroachment into the easement, and Plaintiffs argue that the construction crews' use of the easement for ingress and egress is beyond the scope of the easement and itself constitutes an ongoing irreparable harm.

The Court disagrees. Regarding the ADU's encroachment, the structure has been constructed. Moreover, Plaintiffs do not seek, nor would it be appropriate to grant, an injunction requiring that the structure be torn down during the pendency of litigation, as that would not maintain what is now the status quo.

Further, Plaintiffs concede that the purpose of the Easement is to allow for mandatory ingress and egress to each of Plaintiffs' and Defendants' adjoining properties. Thus, it follows that Defendants' invitees (here, the Construction crew) must also be allowed to use the Easement for ingress/egress to access Defendants' property.

To hold otherwise would produce the absurd result that neither Plaintiffs nor Defendants may ever receive invitees. Thus, while Plaintiffs may find the ongoing construction work unpleasant, they may not deprive Defendants' construction crew access to Defendants' property by way of the Easement.

Thus, given that the ongoing construction work to the 208 Bricknell property is entirely interior to the buildings on Defendants' land (save for the small portion of the ADU that already encroaches upon the Easement), there is no ongoing immediate and irreparable injury that can be cured by the preliminary injunction Plaintiffs seek.

With regard to the 210 property, because the City permits are not anticipated to be granted for another year, Plaintiffs have identified no immediate harm.[1]

Contemporaneously with the Reply, Plaintiffs submitted rebuttal declarations of Mark Johnson and Pamela Hieronymi, as well as various lodged videos. The Court does not generally consider reply evidence, as it deprives the opposing party of notice and a fair opportunity to respond, in violation of their due process rights. (See *San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A.* (2002) 102 Cal.App.4th 308, 316 ["due process requires a party be fully advised of the issues to be addressed and be given adequate notice of what facts it must rebut in order to prevail"]; see also *Wall Street Network Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171.)

Further, the Court finds it unavailing in any event. They merely quibble about whether the rebar was actually on their property and argue they were advised not to and were fearful of driving over the plastic covers that were placed at or near the open trench. But as this activity is all in the past, it does not constitute an ongoing immediate and irreparable harm warranting injunctive relief.

CONCLUSION AND ORDER

Finding Plaintiffs have not identified any immediate and irreparable ongoing harm that can be cured by the injunctions sought, the Court denies Plaintiffs' motion for a preliminary injunction without prejudice.

Plaintiffs shall provide notice of the Court's ruling, and file the notice with a proof of service forthwith.

DATED: July 30, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court

[1] Because Plaintiffs have identified no immediate and irreparable harm that can be cured by the injunction they seek, the Court does not analyze likelihood of success on the merits.